BY ORDER OF THE COMMANDER
71ST FLYING TRAINING WING (AETC)

VANCE AIR FORCE BASE
INSTRUCTION 31-202

11 JUNE 2024

Security

DEPENDENT REVIEW BOARD

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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(Col Charles D. Throckmorton IV)

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This instruction implements Air Force Policy Directive (AFPD) 51-5, *Administrative Law, Gifts, and Command Relationships,* 31 August 2018. It establishes the Vance Air Force Base (AFB) Dependent Review Board (DRB) and provides guidance and standard procedures for cases of dependent misconduct referred to the board. It applies to all dependents whose sponsors are assigned and/or attached, either as permanent party or on temporary duty at Vance AFB, whose family members reside on or use facilities on Vance AFB, as well as to dependents of military members residing on but not attached to Vance AFB. The objective of the DRB is to promote good order and discipline and is intended to be rehabilitative rather than punitive in nature.

This publication requires the collection and or maintenance of information protected by the Privacy Act (PA) of 1974, in accordance with System of Records Notice (SORN) F031 AF SF C, *Complaint/Incident Reports (August 7, 2009, 74 FR 39674)* and F031 AF SP J, *Serious Incident reports(June 11, 1997, 62 FR 31793)* are available at **https://dpcld.defense.gov/Privacy/SORNsIndex/DOD-Component-Notices/Air-Force-Article-List/.** Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with AFI 33-322, *Records Management and Information Governance Program,* and are disposed of in accordance with the Air Force Records Disposition Schedule located in the Air Force Records Information Management System (AFRIMS) Air Force Records Disposition Schedule (RDS) located at **https://www.my.af.mil/gcss-af61a/afrims/afrims/**. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change to Publication*; route AF Form 847s from the field through the

Vance AFB Publications and Forms Manager. (AF Form 847 is prescribed in AFI 11-215, *USAF Flight Manuals Program [FMP].* Refer to that publication for guidance on filling out the form.)

SUMMARY OF CHANGES

Updates of parent regulations, format, and grammatical errors. Adds personnel who can attend the Dependent Review Board upon request from the Chairperson.

1. Overview. This instruction establishes responsibilities and procedures for effective management of the Dependent Review Board (DRB).

2. Terms. Terms are defined in **Attachment 1** to this publication.

3. Purpose. The DRB is an administrative (non-criminal and informal in nature) body formed under the authority of the 71st Flying Training Wing Commander (71 FTW/CC). The DRB recommends action to the 71st Mission Support Group Commander (71 MSG/CC) to ensure dependent misconduct does not disrupt the good order and discipline of Vance AFB. The primary goal of the DRB is to rehabilitate dependent offenders, while simultaneously preserving good order and discipline on Vance AFB.

4. Policy.

4.1. This instruction is not intended to remove the unit commander's ability to handle issues at the unit level. Unit commanders may elect to counsel, reprimand, or take other appropriate actions towards their Airmen after consulting with the Staff Judge Advocate's office. Such action may be in addition to the recommended actions of the DRB.

4.2. The DRB will hear cases involving misconduct perpetrated by dependent military family members whose sponsors are assigned to or live on Vance AFB. Not every instance of dependent misconduct will be brought before the DRB. Only those cases reflecting a trend of misconduct or behavioral patterns serious enough to warrant command interest will be considered by the DRB. These cases include, but are not limited to, violations of all governing laws, instructions, and regulations.

4.3. Proceedings before the DRB shall be informal and noncriminal in nature. The rules of evidence shall not apply in any form to DRB proceedings. The offender and their sponsor do not have the right to cross-examine witnesses called by the DRB or the right to call a witness. The DRB should consider any reasonable recommendations offered by the dependent's sponsor.

4.4. The DRB will recommend actions designed to rehabilitate the offender when possible, and to preserve good order and discipline on Vance AFB. These actions do not constitute a criminal record. The Staff Judge Advocate should refer more serious instances of dependent misconduct, such as violent crimes or thefts and vandalism over $500, to appropriate state or federal criminal authorities.

4.5. All proceedings before the DRB are confidential, and no information derived from it is releasable to any person or organization without the consent of the dependent's sponsor.

4.6. Sponsors of dependents brought before the DRB must appear, and their dependent is highly encouraged to attend. The sponsor's failure to appear, after proper notification, may constitute a violation of Article 92, Uniform Code of Military Justice (UCMJ), Failure to Obey

a Lawful Order. If a juvenile dependent has a non-military parent, that parent is also strongly encouraged to appear with the juvenile. A military sponsor on temporary duty (TDY), who is unable to meet the DRB, will be notified of the DRB appointment by the sponsor's unit, and the current guardian of the juvenile will be requested to bring the juvenile to appear before the DRB. Sponsors will acknowledge receipt of the decision letter within 5 duty days from receipt by endorsing and returning the memorandum to the Dependent Review Officer.

5. Responsibilities.

5.1. The 71 FTW/CC is responsible for maintaining good order and discipline on Vance AFB. The 71 FTW/CC is the authority for the establishment of the DRB.

5.2. The 71 MSG/CC is responsible for DRB management. The DRB meets at his/her direction. The 71 MSG/CC or 71st Mission Support Group Deputy Commander (71 MSG/CD) must sign the Order to Appear.

5.3. The 71 MSG/CD is the chairperson of the DRB and will preside over the DRB.

5.4. The 71st Security Forces Squadron Commander (71 SFS/CC) will appoint a Dependent Review Officer (DRO) to oversee the administration of the DRB. The 71 SFS/CC or designated representative (as approved by the 71 MSG/CC) is required to attend the DRB.

5.5. The DRO will:

5.5.1. Review all incident/complaint reports pertaining to dependents provided by the 71 SFS Reports and Analysis Section (71 SFS/S5R).

5.5.2. Schedule a board when directed by the 71 MSG/CC.

5.5.3. Advise the board members of the appropriate uniform for duty (uniform of the day) and the date and time of the scheduled DRB.

5.5.4. Notify the military sponsor of the DRB by routing an Order to Appear letter (signed by the 71 MSG/CC or 71 MSG/CD) through the sponsor's commander. The Order to Appear letter will inform the sponsor of the location and time of the DRB and provide other instructions such as appropriate uniform to be worn.

5.5.5. Prepare a complete case report, including a history of the dependent for all members of the DRB.

5.5.6. Prepare a post-hearing decision letter for either 71 MSG/CC or 71 MSG/CD signature, addressed to the dependent offender and their sponsor, announcing the formal disposition of the case. The DRO will ensure appropriate legal review before forwarding documentation for signature.

5.5.7. Maintain records for each DRB session.

5.6. Sponsors are responsible for the conduct of their dependents and for ensuring compliance with applicable state and federal laws and governing Vance AFB instructions.

6. DRB Procedures.

6.1. At a minimum, the following panel members are required to attend the DRB: 71 MSG/CD (Chairperson), DRO, 71 FTW Judge Advocate (JA), and 71 SFS/CC.

6.2. The DRB Chairperson may request the attendance of other personnel including, but not limited to, the sponsor's Group Commander, Group Senior Enlisted Leader (SEL), Squadron Commander, Squadron SEL, and First Sergeant. The DRB Chairperson may alsorequest a Military and Family Readiness Center representative, Mental Health, 71 SFS Investigator (71 SFS/S2I), Fire Department and/or the School Liaison Program Manager.

6.3. During DRB proceedings, only the following people shall be present in the hearing room:

6.3.1. The Board members and its advisors, as indicated in paragraphs **6.1** and **6.2**.

6.3.2. The military sponsor of subject dependent.

6.3.3. The non-military parents of subject dependent if dependent is under the age of 18.

6.3.4. Subject dependent.

6.3.5. No other person shall be permitted access to the hearing room while the DRB is in session without the request of the alleged offender and approval of the DRB Chairperson.

6.4. The dependent and/or sponsor may make an oral statement. Any other information provided must be in writing. This is not an adversarial hearing. The dependent offender and their sponsor have no right to have legal counsel, or an attorney to represent them during the hearing, nor do they have the right to cross-examine witnesses called by the DRB or the right to call witnesses. The DRB should request and consider any reasonable recommendations offered by the dependent's sponsor.

6.5. After all parties have an opportunity to speak, the Chairperson, with the consent of the other DRB members, will recess the hearing for deliberations. The DRB will then decide whether the dependent was involved in the alleged misconduct. The DRB's findings will be based on preponderance of evidence and by majority vote of panel members, and anyone else that the Chairperson deems pertinent. The 71 MSG/CD will determine the final recommendation.

7. Actions of the DRB.

7.1. After considering the evidence of misconduct, the dependent's and sponsor's responses to the alleged misconduct, and the best interests of Vance AFB, the DRB will render findings of fact based on preponderance of the evidence and will make recommendations to the 71 MSG/CC concerning any corrective action for final approval. Recommendations may include but are not limited to:

7.1.1. No further action/dismissal of charges.

7.1.2. Oral counseling or reprimand of the dependent and/or the dependent's military sponsor by the appropriate commander.

7.1.3. Written admonishment or warning letter to the dependent and/or sponsor.

7.1.4. Dependent preparation of an essay reflecting on dependent's misconduct.

7.1.5. Referral of the dependent and/or sponsor to an appropriate agency for counseling, information, or treatment.

7.1.6. Referral of the dependent to an educational program.

7.1.7. Community service.

7.1.8. Restitution.

7.1.9. Restricted curfew.

7.1.10. Placing particular areas and facilities on the installation off-limits.

7.1.11. Revocation/suspension of driving privileges.

7.1.12. Debarment of the dependent from the installation.

7.1.13. Termination of base housing privileges.

7.1.14. Referral to local civil criminal authorities.

7.1.15. Other actions as deemed appropriate by the DRB.

8. Service of Actions.

8.1. The DRO will provide the final decision and actions to be taken, in writing, to the sponsor, dependent, and sponsor's commander. The sponsor will acknowledge receipt of the decision by endorsing and returning the memorandum to the DRO within 5 duty days from receipt.

9. Disposition Instructions

9.1. Records will be kept by the DRO of each DRB session. The records will be kept under the dependent's name and will be destroyed upon PCS, sponsor's separation from service, or a juvenile's 18th birthday.

10. Command Action.

10.1. If applicable, command action taken will be documented on Section VIII, "COMMANDER'S SECTION" of the AF Form 3545, *Incident Report*, and returned to 71 SFS/S5R to be filed as prescribed by instructions governing the use of that incident report.

11. Completion of Actions.

11.1. The sponsor's unit commander or First Sergeant will ensure all assignments directed by the DRB are carried out promptly and will report to the DRO when all actions are completed.

12. Appeal.

12.1. The sponsor has the right to appeal any findings or actions taken. The sponsor must submit a written appeal to the DRO within 10 calendar days of receipt of the final decision. The appeal must be addressed to the 71 FTW/CC and will be routed through 71 FTW/JA and 71 MSG/CC. At a minimum, the statement of appeal should address the reasons why the actions taken against the dependent were too severe or inappropriate. The appellate authority's decision is final.

13. Suspension, Mitigation, Remission, and Setting Aside Administrative Sanctions.

13.1. The 71 FTW/CC may, upon his or her own action or upon appeal, suspend, mitigate, remit, or set aside any portion of previously approved actions. The 71 FTW/CC reserves the right to vacate any previously suspended actions without referring the case to the DRB upon another act of misconduct by the dependent.

13.1.1. Suspension. To suspend administrative sanctions means to postpone all or part of the administrative sanctions for a specific probationary period with the understanding that

it will be automatically remitted at the end of that period if the offender does not engage in further misconduct.

13.1.2. Mitigation. The administrative sanctions may be changed to a less severe administrative sanction(s) in quantity or type.

13.1.3. Remission. The offender is excused from the unexecuted portion of any administrative sanctions.

13.1.4. Set Aside. The cancellation of any of the administrative sanctions in whole or in part when it appears the offender has suffered a clear injustice.

14. Failure to Comply.

14.1. Failure to comply with any actions prescribed by the DRB will be documented by the DRO and sent to the DRB Chairperson. If the DRB Chairperson determines the dependent has failed to comply, the DRB Chairperson may take additional action including, but not limited to, one of the following: letter of warning, scheduling the dependent and sponsor for another DRB, recommending debarment of the dependent from the installation, or recommending termination of base housing privileges for the sponsor.

CHARLES D. THROCKMORTON IV, Colonel, USAF
Commander, 71st Flying Training Wing

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References:

AFPD 31-1, *Integrated Defense,* 20 June 2018

AFI 31-118, *Security Forces Standards and Procedures*, 17 August 2020

AFI 33-322, *Records Management and Information Governance Program*, 27 July 2021

Vance Youth Self Care Supervision Matrix, 15 February 2024

Adopted Forms:

AF Form 847, Recommendation for Change of Publication, 22 September 2009 AF Form 3545, *Incident Report*, 20 November 2020

Abbreviations and Acronyms AFB—Air Force Base AFI—Air Force Instruction AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

AFRIMS—Air Force Records Information Management System

CC—Commander CD—Deputy Commander

DRB—Dependent Review Board DOD—Department of Defense DRO—Dependent Review Officer FTW—Flight Training Wing MDG—Medical Group MSG—Mission Support Group OPR—Office of Primary Responsibility PCS—Permanent Change of Station RDS—Records Disposition Schedule SFS—Security Forces Squadron SJA—Staff Judge Advocate TDY—Temporary Duty

UCMJ—Uniform Code of Military Justice

Terms

Dependent—Any person for whom a military member is legally responsible, to include the following: spouse, any person under the age of 18 for whom the military member has legal or physical custody, any unmarried natural children of the military member or spouse, and any person dependent on the military member or spouse for their care, maintenance, or support regardless of age.

Dependent Review Board (DRB)—The committee charged with reviewing cases of dependent misconduct referred by the Dependent Review Officer (DRO). Periodic hearings held at the call of the 71st Mission Support Group Commander (71 MSG/CC), in which dependent offenders and their sponsors meet the committee to examine the facts and relevant circumstances surrounding incidents referred to the committee. The DRB will establish recommendations for action intended for rehabilitation, accountability, and restitution for the misconduct and pursuant to the furtherance of good order and discipline on Vance AFB.

Misconduct—Any violation of governing laws, instructions, or regulations; behavior that is wrongful and threatens the safety, health, welfare, or quiet enjoyment of base housing residents; and any conduct that adversely affects good order and discipline on Vance AFB.

Sponsor—Military member responsible for the dependent.

Attachment 2 ORDER TO APPEAR—MEMORANDUM FOR [RANK, NAME OF MILITARY SPONSOR]

[NAME OF DEPENDENT]

FROM: 71 MSG/CC
246 Brown Parkway, Suite 230 Vance AFB OK 73703-5036

SUBJECT: Notification of Dependent Review Board Hearing

1. Security Forces records indicate that your dependent, XXXXX, was involved in an incident on XXXXX. XXXXX was involved with XXXXX. As a sponsor, you are responsible for the actions of your dependent.

2. As a result of your dependent's actions, you are directed to appear at a Dependent Review Board (DRB) hearing. Your dependent will accompany you. You have been scheduled to appear before the DRB with your dependent on XXXXX at XXXXX in the Court Room, Building 455. The DRB is non-criminal in nature and hears all cases referred in which a dependent is alleged to have engaged in misconduct on Vance AFB. This is a closed hearing and is not open to the public. Your Commander, First Sergeant, and spouse may attend upon your request.

3. The hearing will offer you and your dependent the opportunity to explain your dependent's actions, refute any allegations and inform the DRB of any other issues you wish to be considered. You and/or your dependent may make an oral statement and provide any other information you wish to be considered, in written form only, to the DRB.

4. The DRB, after hearing all the evidence, will take appropriate command action. Upon completion of the DRB, you will be notified of corrective actions, if any, recommended by the board. Recommendations may include but are not limited to: no further action/dismissal; oral counseling; written admonishment or warning letter to the dependent and/or sponsor; preparation of an essay reflecting on their misconduct; referral of dependent and/or sponsor to an appropriate agency for counseling, information, or treatment; referral of the dependent to an educational program; community service; restitution; restricted curfew; placing particular areas and facilities on the installation off-limits; revocation/suspension of driving privileges; debarment of the dependent from the installation; termination of base housing privileges; referral to local civil criminal authorities; or other actions as deemed appropriate by the DRB.

5. If you and your dependent are unable to attend because of scheduled leave, TDY, or other unavoidable commitments, you may request a delay through the 71st Security Forces Reports and Analysis office at 213-5522.

6. Failure to appear before the scheduled DRB, or comply with the decision of the Chairperson, may result in immediate command action and/or your dependent's case being forwarded to the local authorities for disposition.

7. You will acknowledge receipt of this letter below and return it to the 71st Security Forces Reports and Analysis office, Bldg. 72, within 5 calendar days of receipt.

8. If you have any questions concerning the upcoming hearing, contact the 71st Security Forces Reports and Analysis office at 213-5522.

FIRST MI LAST, Colonel, USAF
Commander, 71st Mission Support Group

1st Ind, [Office symbol of Military Sponsor] MEMORANDUM FOR 71 SFS/S5R
I hereby acknowledge receipt and understanding of the contents of the foregoing letter of Dependent Review Board hearing on this day of 20_.

FIRST MI LAST, RANK, USAF
Sponsor

Attachment 3

TABLE 3.1. DRB RECOMMENDATION.

NAME: [LAST, FIRST]		
OFFENSES:		
SUMMARY OF FACTS:	On XXXXX, [Name] was XXXXX. Member's sponsor is [Rank, Name, Squadron of Military Sponsor].	
RECOMMENDATIONS:	JUVENILE	MILITARY SPONSOR
ORAL COUNSELING	Y/N	Y/N
ORAL REPRIMAND	Y/N	Y/N
WRITTEN WARNING	Y/N	Y/N
WRITTEN ADMONISHMENT	Y/N	Y/N
WRITTEN ESSAY	Y/N #_____WORDS	N/A
SHOPLIFTER'S COURSE	Y/N	N/A
COMMUNITY SERVICE	Y/N	N/A
RESTITUTION	Y/N $	N/A
CURFEW RESTRICTION	Y/N	N/A
FACILITIES RESTRICTION/BARMENT	Y/N LOCATION(S):	N/A
INSTALLATION BARMENT	Y/N	N/A
TERMINATION OF GOVT QUARTERS	N/A	Y/N
REFERRAL TO AGENCY (e.g., Family Advocacy, Mental Health Services, Chaplain, Alcohol/Drug, etc.)	Y/N AGENCIES:	Y/N AGENCIES:
REFERRAL TO CIVILIAN CRIMINAL COURT	Y/N	N/A
OTHER:	Y/N	Y/N
LEGAL REVIEW: CONCUR/NONCONCUR		DATE:
71 MSG/CD SIGNED:		DATE: